

Subject: Law

Production of Courseware

 - Content for Post Graduate Courses

Paper : ADVANCED CONSTITUTIONAL LAW

Module : PREAMBLE, CONSTITUTIONAL INTERPRETATION AND
CONSTITUTIONALISM

Component - I - Personal Details

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Component - I (B) Description of Module

	Description of Module
Subject Name	Law
Paper Name	Advanced Constitutional Law
Module Name/Title	Preamble, Constitutional Interpretation and Constitutionalism
Pre-requisites	Understanding Preamble as a key to the basic framework of the Constitution.
Objectives	To provide an understanding of features depicting the spirit of Constitution



Component - II

Module - I **PREAMBLE, CONSTITUTIONAL INTERPRETATION AND CONSTITUTIONALISM**

Structure:

1. Learning objectives
2. Introduction
3. Purpose of Preamble
4. Basic Structure of the Constitution
5. Constitutionalism
6. Constitutional Interpretation
7. Summary

Learning Outcome:

After going through this lesson, we shall be able to learn:

- a) The purpose of Preamble;
- b) 42nd Amendment and the Preamble;
- c) Features depicting the spirit of Constitutionalism in the Preamble;
- d) Whether can the Preamble be amended;

Introduction:

The Preamble to a Constitution embodies the fundamental values and the philosophy, on which the Constitution is based, and the aims and objectives, which the founding fathers of the Constitution enjoined the polity to strive to achieve. The importance and utility of the Preamble has been pointed out in several decisions of the Supreme Court of India. Though, by itself, it is not enforceable in Court of Law and does not constitute an operative part of the Indian constitution, yet it serves several important purposes.

Framing of the Preamble:

The Preamble to a written Constitution states the objects which the constitution seeks to establish and promote and also aids the legal interpretation of the Constitution where the language is found to be ambiguous. **The Preamble to our Constitution serves two purposes:**

- (a) It indicates the source from which the constitution derives its authority;
- (b) It also states the objects which the constitution seeks to establish and promote.

The preamble to the constitution reads:

“WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all its citizens:
JUSTICE, social, economic and political;



LIBERTY, of thought, expression, belief, faith and worship;
EQUALITY, of status and opportunity and to promote among them all;
FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation;
IN OUR CONSTITUENT ASSEMBLY, This 26th day of November 1949, do
HEREBY ADOPT, ENACT AND GIVE TO OURSELVES, and THIS
CONSTITUTION.”

An analysis of the preamble reveals that the source of the constitution is “**We, the people.**”

But the constitutions were neither framed by the people nor were the members of the Constituent Assembly directly elected representatives of people. They were elected under the Cabinet Mission Plan during the British rule on the basis of restrictive franchise. Yet the claim that the constitution is derived from the people is justified because of its broad-based popular acceptance ever since it came into force.

Purpose of the Preamble:

The Preamble declares that it is the people of India who had enacted, adopted and given the Constitution to themselves. Thus, sovereignty lies ultimately with the people. It also declares the ideals and aspirations of the people that need to be achieved. Ideals are different from aspirations. While the former have been achieved with the Constitution proclaiming India as ‘*Sovereign, Socialist, Secular, Democratic Republic*’, the latter include *Justice, Liberty, Equality* and *Fraternity*, which are yet to be achieved. The ideals are the means to achieve aspirations.

The very first sentence of the preamble declares India to be a Sovereign Socialist Democratic Republic.

The term ‘**sovereign**’ implies that India is internally supreme and externally free. State authority of India is supreme over all men and all associations within India’s territorial boundary. This is India’s internal sovereignty. Externally India is free from all external controls. India’s membership of the commonwealth or of the United Nations does not impose any external limit on her sovereignty. The Commonwealth is a free association of .sovereign Nations. It is no longer British Commonwealth. India does not accept the British Queen as the head of state. As Nehru pointed out, India joined the commonwealth by her “**free will.**” As for the U.N. it is not a super state but club of free nations. Membership of the U.N. in no way limits the authority of sovereign states. On the other hand, this membership is a mark of sovereignty of state, for only sovereign states are admitted to the membership of the United Nations.

The terms socialist and secular were added to the preamble by 42nd amendment in 1976. What was implicit in the Constitution until then became explicit. India’s association with socialism began in the early fifties at the Avadi Congress. Glaring disparity in income distribution induced the government to control the commanding heights of the economy in the interest of suffering masses. That is the reason that right of private property was removed from the list of fundamental rights through a constitutional amendment.

Again **secularism** is a glaring necessity in India’s socio-political context. The object of insertion was to spell out expressly the high ideas and the compulsive need to maintain the integrity of nation which are subject to considerable stresses and strains,



and vested interests have been trying to promote their selfish interests to the detriment of public good.¹ That India is a ‘*Secular State*’ does not mean that India is non-religious or irreligious, or anti religious, but simply that the State in itself is not religious and embodies the ancient Indian principle of “*Sarva Dharma Samabhava*”, meaning thereby that the State shall not discriminate against the citizens in any way on the basis of religion. The State regards religion to be the private affair of a person and also the right to believe or not to believe in a religion. Inhabited by people of all faiths, it is imperative that India does not accept any religion as the state-religion and ensures that religious minorities do not suffer from a sense of inferiority. The terms ‘**Democratic Republic**’ in the preamble are very important. India’s aim is to build up not only a democratic political system but also a democratic social system. In the matter of political organization, India has opted for representative democracy. This implies that government power shall be vested in the popularly elected representatives of the people. In India popular elections give legitimacy to our rulers. A system is **republican** where no office of the state is held on the basis of hereditary prescriptive rights. In India every office of the state from the highest to the lowest is open to every citizen. Any citizen may occupy any office on the basis of merit. Thus, headship of the state is not hereditary as in England, nor is it based on military power as in dictatorial regimes.

Whether the Preamble is a part of the Constitution:

The Supreme Court in the *Kesavananda Bharati v State of Kerala*² overruled its earlier decision of 1960³ and made it clear that it is a part of the Constitution and is subject to the amending power of the Parliament as any other provisions of the Constitution, provided the basic structure of the Constitution as found in the Preamble is not destroyed. However, it is not the essential part of the Constitution.

Basic Structure of the Constitution:

The concept of basic structure of the Constitution is nowhere found in the Constitution. This doctrine is a judicial innovation and was given its shape by the Supreme Court in the *Kesavananda Bharati v State of Kerala*⁴. The doctrine simply states that any law passed by the Parliament, which destroys the basic structure of the Constitution shall be declared void to the extent of its destruction. The basic aim of the Supreme Court was to maintain its superiority as well as to sustain a balance between the three organs of the State. The Court however did not define in precise terms the basic structure of the Constitution. But in a number of decisions, the Supreme Court has made it clear as to what the basic structure of the Constitution is. The following concepts are some of the basic structure –

¹ *M.P. Gopalakrishnan Nair v State of Kerala*, [2005] 11 SCC 45

² [1973] 4 SCC 225

³ *Re Berubari Union & Exchange of Enclaves*, [1960] 3 S.C.R 281

⁴ *Ibid.*



Supremacy of the Constitution, Republican and Democratic form of Government, Federalism, Secular character of the Constitution, Separation of powers between the three organs of the State,

Judicial review, Sovereignty of the country, etc. Exercising this power, the Supreme Court struck down the amended provision of Art. 368 (introduced by the 42nd Amendment Act, 1976) on the ground that it deprives the Supreme Court of the power of 'judicial review', a basic structure of the Constitution (*Minerva Mills case*⁵ and *Waman Rao v Union of India*)⁶

Objectives of the Constitution as stated in the Preamble:

The Preamble states that the objectives to be secured to every citizen are -

(i) Justice-social, economic and political.

(ii) Liberty- of thought, expression, belief, faith and worship.

(iii) Equality-of status, opportunity;

and to promote among them all - Fraternity-assuring the dignity of the individual and the unity and integrity of the Nation To build up an ideal democracy, the preamble emphasizes **justice, liberty, equality and fraternity** as political ideals.

The **ideal of justice** implies a system where individuals can realize their full potentialities. In the view of our founding fathers it is not enough that there is political or legal justice. **Political and legal justice** is a myth unless accompanied by social and economic justice. Political justice in India is guaranteed by universal adult suffrage without any sort of qualification. While social justice is ensured by abolishing any title of honor (Art. 18) and untouchability (Art 17), economic justice is guaranteed primarily through the Directive Principles. **Social justice** implies that all social discriminations like caste or untouchability must be ended. **Economic justice** implies that economic exploitations should be ended. However, social and economic justice still remains unrealized dreams.

The **ideal of liberty is not liberty generally** BUT LIBERTY of thought , expression, belief, faith and worship. The objective in its absoluteness means different things to different people and is not reflected in any Article of our Constitution. However subject to public order, morality and health, this objective can be related to Art. 25 which confers on every person the freedom of conscience and the right freely to profess , practice and propagate religion, for such freedom necessarily requires freedom of thought, expression ,belief and worship.

The **ideal of equality** is aimed at removing discriminations between citizens, has two aspects, negative and positive; equality may be achieved to some extent by removing inequality. This is particularly important in the Indian society, vitiated by caste system and untouchability. But here again one should remember that equality in the social arena is bound to be empty unless accompanied by economic equality.

Finally, **fraternity** as an ideal, added by the Drafting Committee, aims to ensure the **dignity of the individual** and **unity of the nation**. One should realize that a fraternal feeling among Indians can grow only in proportion to the realization of the ideals of justice, liberty and equality. Thus fraternity is not an independent ideal but a resultant of the successful realization of important ideals listed earlier. The fraternity which the Preamble seeks to profess is not confined within the bounds of the national territory;

⁵ [1980] 2 SCC 591

⁶ [1981] 2 SCC 362



it is ready to overflow them to reach the loftier ideal of universal brotherhood; which can hardly be better expressed than in the **memorable words of Pandit Nehru:**

“The only possible, real object that we, in common with other nations, can have is the object of co-operating in building up some kind of a world structure, call it one world, call it what you like.”

Constitutionalism

Beside the concept of the constitution, there is also an important concept of ‘Constitutionalism’. This idea of constitutionalism is not new. It is embedded deeply in human thought. Many natural law philosophers namely, Paine, Locke, Grotius, and Rousseau, have promoted this idea through their writings. The Magna Carta (1215) strengthened the traditional view that law is supreme.

Modern political thought draws a distinction between ‘constitutionalism’ and ‘Constitution’. The underlying difference between the two concepts is that a constitution ought not merely to confer powers on the various organs of the Government, but also seeks to restrain those powers. Constitutionalism recognises the need for government but insists upon limitations being placed upon governmental powers. Constitutionalism envisages checks and balances and putting the powers of legislature and executive under some restraints and not making them uncontrolled and arbitrary. Unlimited powers jeopardize freedom of the people.

If the Constitution confers unrestrained power on either the legislature or the executive, it might lead to an authoritarian, oppressive government. Therefore, in order to preserve the basic freedoms of the individual, and to maintain his personality and dignity, the Constitution needs to be permeated with ‘constitutionalism’; it should have some in-built restrictions on the powers conferred by it on governmental organs. Constitutionalism is the antithesis of arbitrary powers, the antithesis of Constitutionalism is despotism, and in essence connotes limited government or a limitation on government. It recognizes the need of government with powers but at the same time insists that there should be limitations on those powers. Only when the constitution of a country seeks to decentralize power instead of concentrating it at one point, and also imposes other restraints and limitations thereon, does a country have not only constitution but also constitutionalism. According to Schwartz, “Constitutions spring from a belief in limited government. In USA, the word Constitution means a written organic instrument, under which governmental powers are both conferred and circumscribed. This stress upon grant and limitation of authority is fundamental”⁷.

The Preamble envisages India as a democratic republic not only from the political but also from the social standpoint; in other words, it envisages a representative democracy, infused with the spirit of justice, liberty, equality and fraternity. Equal treatment of minorities, even apart from the constitutional safeguards, opportunity to men and women in matter of public appointment, irrespective of caste and creed, depicts that this Democratic Republic stands for the good of all the people is embodied in the concept of a Welfare State that inspires the Directive Principles of State policy. Dr. Radhakrishnan has put it-

⁷ Schwartz, *Constitutional Law :A Text Book*, 1 (1972)



“Poor people who wander about, find no work, no wages and starve, whose lives are a Continual round of sore affliction and pinching poverty, cannot be proud of the constitution or its law.”

Also, **Secularism**, means every citizen has a right to profess religion of their own choice, which promotes automatically liberty of faith and worship, depicting no state religion. In this way, It can be surmised that preamble too, holds the spirit of constitutionalism.

Another provision is “Rule of Law”, on its basis spirit of constitutionalism can be present in a state. Rule of law has no fixed or articulate connotation though Indian courts refer to this phrase time and again. The emphasis is on absence of any centre of arbitrary or unlimited power in the country on proper structuring and control of power, absence of arbitrariness in the government. Government intervention in many daily activities of the citizens is on the increase creating a possibility of arbitrariness in state action. Rule of law is useful as a counter to this situation, because the basic emphasis of rule of law is on exclusion of arbitrariness, lawlessness and unreasonableness on the part of the government.

In *P. Sambamurthy v State of Andhra Pradesh*⁸, the Supreme Court has declared a provision authorising the executive to interfere with tribunal justice as unconstitutional characterising it as violative of the rule of law which is clearly a basic and an essential feature of the constitution.

The Indian Constitution by and large seeks to promote Rule of Law through many of its provisions, for example, Parliament and State legislature are democratically elected on the basis of adult suffrage. Article 14 of the Constitution guarantees right to equality before law. This Constitutional provision has now assumed great significance as it is used to control administrative powers lest they should become arbitrary.

A significant derivative from Rule of Law is Judicial Review. Judicial Review has been guaranteed through several constitutional provisions. The Supreme Court has characterized judicial review as a ‘basic feature’ of the Constitution⁹. In written constitution, Higher law depicts constitution as Supreme but where there is no written constitution; there are some principles which can be regarded as Supreme or Higher law principle.

In *A.K Gopalan v State of Madras*¹⁰ the Supreme Court has upheld that it is difficult to restrict the sovereign legislative power by judicial interference except so far as the express provision of written constitution. It is only the written provisions of constitution which may restrain legislative power, but where there is no written constitution, then, who restrain legislative power, and then its answer is judiciary by following various principles, precedents, customs, usages, and different statutes can check the consistency. It clearly signifies that in absence of power of judicial review in hands of judiciary, judiciary is only a puppet of legislators.

⁸ AIR 1987 SC 663

⁹ *Minerva Mills Ltd. v Union Of India*, AIR 1980 SC 1789

¹⁰ [1950] SCR 88(100)



Article 14 of the Constitution guarantees Right to Equality before law. This provision has now assumed great significance as it is used to control administrative powers lest they should become arbitrary.

Thus, a written constitution, independent judiciary with powers of judicial review, the doctrine of rule of law and separation of powers, free elections to legislature, accountable and transparent democratic government, Fundamental Rights of the people, federalism, decentralisation of power are some of the principles and norms which promote Constitutionalism in a country.

CONSTITUTIONAL INTERPRETATION:

The primary question here is- do courts make law or do they only declare law? The old orthodox theory was that a judge never creates law, but that he only declares law. This mechanistic view of the judicial function was prevalent in Britain in the early twentieth century. But in modern times, this time honoured fiction of the declaratory role of the judge has been dissented from.

Well established rules of interpretation require that the meaning and intention of the framers of a Constitution- be it Parliament or a Constituent Assembly, must be ascertained from the language of that Constitution itself; with the motives of those who framed it, the court has no concern.

Literal V. Liberal Approach

In *re the C.P. Berar Act, 1938*¹¹, known as *The Central Provinces Case*, after quoting the observations of Lord Wright in *James v Commonwealth*¹² that a Constitution must not be construed in a narrow or pedantic manner and that construction most beneficial to the widest possible amplitude of its powers must be adopted, Gwyer C.J. added that a broad and liberal spirit should inspire those whose duty is to interpret the constitution, but it does not imply that they are free to stretch or pervert the language of the enactment in the interests of any legal or constitutional theory, or even for the purposes of supplying omissions or of correcting supposed errors.

Pramati Educational and Cultural Trust v Union of India,¹³ In this recent case, known as *Pramati*, on constitutional interpretation, the bench upheld the constitutional validity of the Right of Children to Free and Compulsory Education Act, 2009 (RTE). This being a reaffirmation of the court's earlier position, pronounced in 2012, in *Society for Unaided Private Schools of Rajasthan v Union of India and others*¹⁴. The second part of the *Pramati* judgment exempts all minority institutions from the RTE. This is an expansion of the ambit of exemption from *Society* case, which had limited it to unaided minority institutions. Minority institutions here refer to both religious and linguistic minorities, as referred to within the Constitution

A court of law, in other words, must gather the spirit of Constitution from the language used, and what one may believe to be the spirit of Constitution cannot prevail if not supported by the language, which therefore must be construed according

¹¹ [1939] F.C.R. 18

¹² [1936] A.C. 578

¹³ [2013] 5 SCC 752

¹⁴ [2012] 6 SCC 1



to well established rules of interpretation uninfluenced by an assumed spirit of the constitution. Where the constitution has not limited, either in terms or by necessary implication, the general powers conferred upon the legislature, the court cannot limit them upon any notion of the spirit of the Constitution.¹⁵

Since the Constitution is the supreme law, it lies upon the courts to determine the meaning and scope of that law or action. In the performance of that function the courts do not act as super legislatures or super executive. As interpreters or arbiters of legal disputes they have to tell what the law is. In doing so, they give due regard to the powers and autonomy of the other organs, particularly, of the legislature. The courts presume that the legislature acts are constitutional unless proved otherwise. But the cases are not always clear and, therefore an unending debate continues on the role of the courts in judging the validity of the laws, particularly of the Union Parliament.

Interpretation by courts becomes a necessity for protection of the individual rights guaranteed by the Constitution for the growth of Constitution itself and is like an institution protecting and upholding “enduring values” enshrined in the Constitution

In the case of *Aruna Roy v Union of India*¹⁶, Article 28(1) of the Constitution came up for interpretation as in the National Curriculum prepared by NCERT, study of religions was sought to be introduced in the State-aided institutions. Prohibition on “religious instruction” under Article 28(1) of the Constitution came up for consideration before the Court. It was held: The expression ‘religious instruction’ used in Article 28(1) has a restricted meaning. It conveys that teaching of customs, ways of worship, practices or rituals cannot be allowed in educational institutions wholly maintained out of State funds. But Article 28(1) cannot be read as prohibiting study of different religions existing in India and outside India. If that prohibition is read with the words ‘religious instruction’, study of philosophy which is necessarily based on study of religions would be impermissible. That would amount to denying children a right to understand their own religion and religions of others, with whom they are living in India and with whom they may like to live and interact. Study of religions, therefore, is not prohibited by the Constitution and the constitutional provisions should not be read so.

Speaking on behalf of seven judges in *L. Chandra Kumar v Union of India*¹⁷, C.J. Ahmadi, observed,

“The judges of the Supreme Courts have been entrusted with the task of upholding the Constitution and to this end, have been conferred the power to interpret it. It is they who have to ensure that the balance of power envisaged by the Constitution is maintained and that the legislature and that the legislature and the executive do not, in the discharge of their functions, transgress constitutional limitations.....”

Thus, the jurisdiction conferred on the Supreme Court under Art. 32 and on the High Courts under Arts. 226/227 of the Constitution has been held to be part of the inviolable basic structure of the Constitution which cannot even be ousted by a Constitutional Amendment.

The law creative function of the judges is very well recognized now. A judge has his own scale of values and makes choices accordingly. If one interpretation of law leads to unjust results and another to just results, nothing prevents a court from adopting the

¹⁵ *A.K.Gopalan v The State*[1950] S.C.R 88

¹⁶ (2002) 7 SCC 368

¹⁷ AIR 1997 SC 3127



latter construction. Influenced by these judicial attitudes, there have been two approaches to the interpretation of a written Constitution. One approach is literal, mechanical, narrow interpretation of the constitution where the judgment constitutes mere exegesis of the fundamental text.

The other is the liberal, purposive, law-creative interpretation of the constitution with the premise that the constitution being the fundamental law of the land should be interpreted more liberally than an ordinary statute.

Conclusion:

The framers of the Constitution kept in view the situations prevailing at the time of its making; although a permanent document, it has been conceived in a manner so as to apply to situations and conditions which might arise in future. The words and expressions used in the Constitution, in that sense, have no fixed meaning and must receive interpretation with insight into social values, and with the suppleness of adaptation to changing needs.

Therefore, the need of the hour is to adopt an integrated approach in interpretation of a Constitution in the light of social, economic and political necessities of a particular period in which the court is called upon to interpret. The interpretation must be such that makes the Constitution a workable law or instrument by treating it as a dynamic living document which needs to be suitably interpreted to meet exigencies of modern world.

